

IP02

Citizenship and Fundamental Rights

The biggest single chapter in Indian Polity - 3-4 questions a paper is normal. Article 21's judicial expansion has come in 2018, 2023 and 2024; the citizens-only versus all-persons distinction in 2016, 2024 and again inside statement sets in 2024. Article numbers must be exact or the question is lost.

Part II gives you citizenship, Part III gives you the Fundamental Rights - Articles 12 to 35, what Ambedkar's colleagues called the Magna Carta of India. This is the densest Article-numbering chapter in the whole Polity syllabus, and RPSC tests it exactly that way: which Article, which writ, which case, which amendment.

Citizenship and Fundamental Rights

Citizenship - Part II, Arts. 5-11

- Art. 5 at commencement
- Art. 6 migrants from Pakistan
- Art. 7 migrants to Pakistan
- Art. 11 Parliament's power
- Single citizenship only

Citizenship Act 1955

- 5 modes of acquisition, 3 of loss
- Amendments 1986, 1992, 2003, 2005, 2015, 2019
- 2015 - PIO merged into OCI
- CAA 2019 - cut-off 31 Dec 2014, 5-year naturalisation

Equality (14-18)

- 14 equality before law
- 15 no discrimination
- 16 public employment
- 17 untouchability abolished
- 18 titles abolished

Freedom (19-22)

- 19 six freedoms
- 20 ex post facto, double jeopardy, self-incrimination
- 21 life and personal liberty; 21A education 6-14
- 22 arrest and preventive detention

23-30

- 23 forced labour, 24 child labour
- 25-28 religion
- 29 culture, 30 minority institutions

Remedies (32-35)

- 32 - the soul of the Constitution
- 5 writs
- 33 armed forces
- 34 martial law
- 35 only Parliament legislates

Article 21 case line

- Gopalan 1950 - narrow
- Maneka Gandhi 1978 - fair, just, reasonable
- Olga Tellis 1985 livelihood
- Puttaswamy 2017 privacy

Citizenship - Part II, Articles 5 to 11, and the Citizenship Act, 1955

Part II does one narrow job. It decides who was an Indian citizen on 26 January 1950, when the country had just been split and people were moving in both directions across a new border. It does not lay down permanent citizenship law. That job it hands to Parliament under Article 11.

Articles 5-11 at a glance

Article	What it deals with
Art. 5	Citizenship at the commencement of the Constitution
Art. 6	Rights of citizenship of persons who migrated to India from Pakistan
Art. 7	Rights of citizenship of persons who migrated to Pakistan
Art. 8	Rights of citizenship of persons of Indian origin residing outside India
Art. 9	Voluntary acquisition of foreign citizenship ends Indian citizenship
Art. 10	Continuance of the rights of citizenship
Art. 11	Parliament's power to regulate the right of citizenship by law

- India has single citizenship only - there is no separate citizenship of a State.
- Contrast the USA, which has dual citizenship, federal and state.
- Articles 5 to 9 came into force on 26 November 1949 itself, ahead of the rest of the Constitution.
- Article 9 is automatic - take a foreign passport voluntarily and you cease to be an Indian citizen.

TRAP

Article 11 is the one that empowers Parliament to make citizenship law. Students routinely tick Article 5. Article 5 only fixes who was a citizen on the day the Constitution began.

Parliament used its Article 11 power to pass the Citizenship Act, 1955. Learn the five ways in and the three ways out. Then learn what each amendment changed - RPSC asks the amendment year, not the section number.

- Five modes of acquisition: by birth, by descent, by registration, by naturalisation, and by incorporation of territory.

- Marriage is NOT a separate mode - a foreign spouse comes in through registration. This is a standard wrong option.
 - Three modes of loss: renunciation, termination and deprivation.
 - Amendments to the Act: 1986, 1992, 2003, 2005, 2015 and 2019.
 - 1992 amendment - citizenship by descent allowed through the mother, not only the father.
 - 2003 amendment - defined the term 'illegal migrant'.
 - 2015 amendment - merged the PIO card scheme into the OCI card scheme.
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- CAA 2019 covers Hindus, Sikhs, Buddhists, Jains, Parsis and Christians - six communities.
 - From Afghanistan, Bangladesh and Pakistan - three countries.
 - Who entered India on or before 31 December 2014 - that is the cut-off date.
 - Naturalisation period for them cut from eleven years to five years.
 - An OCI cardholder is not a citizen: no voting right, no public office, no agricultural land.

CURRENT LINK

Current link, as of September 2026: the CAA Rules were notified on 11 March 2024 and the first certificates of citizenship under the Act were granted in May 2024. The Supreme Court declined to stay the Rules, and the batch of more than 200 petitions challenging the Act's constitutional validity was listed for final hearing in 2026 - check the latest position before the exam.

The frame of Part III, and the Article-to-right table for Articles

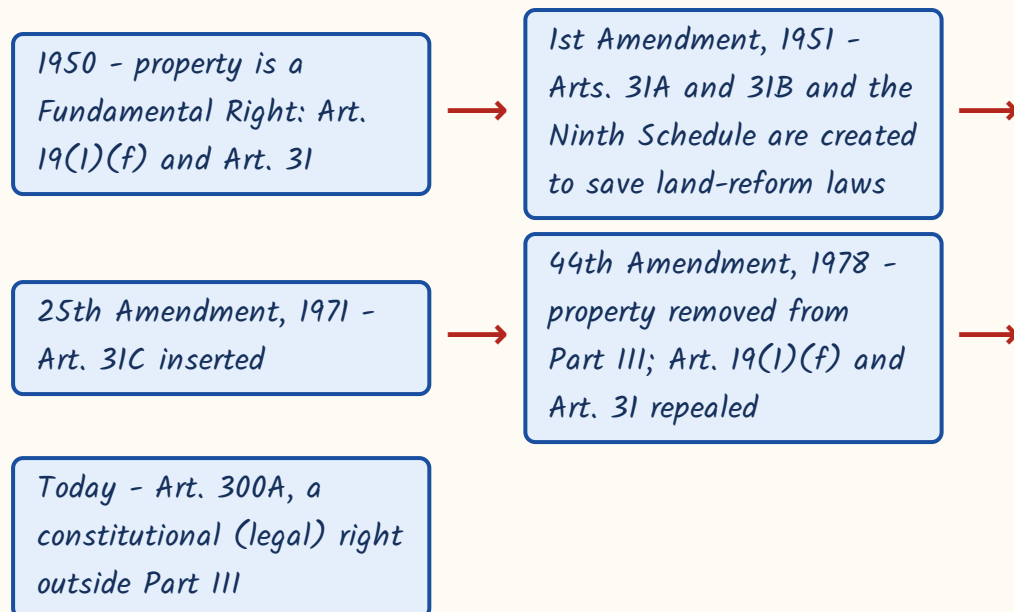
12 to 35

Fundamental Rights sit in Part III, Articles 12 to 35. They are called the Magna Carta of India. They are enforceable against the State, so before you can use them you must know what 'State' means - and that is Article 12's job. Article 13 then supplies the weapon: any law that clashes with a Fundamental Right is void.

- Art. 12 defines 'State' as: the Government and Parliament of India; the Government and legislature of each State; all local authorities; and all other authorities within India or under the control of the Government of India.
- 'Local authorities' covers municipalities, panchayats, district boards, improvement trusts.
- 'Other authorities' has been read by the courts to cover statutory and non-statutory bodies substantially controlled or financed by government.
- Art. 13 - all laws inconsistent with Fundamental Rights are void. This is the express textual basis of judicial review.
- Art. 13(4), inserted by the 24th Amendment Act, 1971, keeps constitutional amendments outside the reach of Article 13.

There were originally seven Fundamental Rights. Today there are six. The right to property went out of Part III through the 44th Amendment Act, 1978 and now sits in Article 300A as a plain constitutional or legal right - you can still enforce it, but not by moving the Supreme Court under Article 32.

The journey of the right to property - a favourite one-liner



ASKED IN RAS

Asked in RAS Pre 2021 - the right to property was removed from the list of Fundamental Rights by the 44th Amendment Act, 1978. Not the 42nd, not the 43rd. And its present home is Article 300A.

The Article-to-right table, Articles 12 to 35 - learn it in two halves

Articles 12 to 24

Article	Right / provision
Art. 12	Definition of 'State'
Art. 13	Laws inconsistent with Fundamental Rights are void - judicial review
Art. 14	Equality before the law and equal protection of the laws
Art. 15	Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth
Art. 16	Equality of opportunity in matters of public employment
Art. 17	Abolition of untouchability
Art. 18	Abolition of titles
Art. 19	The six freedoms
Art. 20	Protection in respect of conviction for offences

Article	Right / provision
Art. 21	Protection of life and personal liberty
Art. 21A	Free and compulsory education for children aged 6-14 years
Art. 22	Protection against arrest and detention in certain cases
Art. 23	Prohibition of traffic in human beings, begar and forced labour
Art. 24	Prohibition of employment of children below 14 in factories, mines and hazardous work

Articles 25 to 35

Article	Right / provision
Art. 25	Freedom of conscience and free profession, practice and propagation of religion
Art. 26	Freedom to manage religious affairs
Art. 27	Freedom from taxation for the promotion of any particular religion
Art. 28	Freedom from religious instruction in wholly State-funded educational institutions
Art. 29	Protection of the language, script and culture of any section of citizens
Art. 30	Right of minorities to establish and administer educational institutions of their choice
Arts. 31A, 31B, 31C	Saving of certain laws; Art. 31B protects laws placed in the Ninth Schedule
Art. 32	Right to constitutional remedies - the five writs
Art. 33	Parliament may restrict the Fundamental Rights of the armed forces and analogous services
Art. 34	Restriction on Fundamental Rights while martial law is in force in any area
Art. 35	Only Parliament may make laws on certain Fundamental Rights matters

TRAP

Article 17 is untouchability, Article 18 is titles. RPSC offers 'Article 18 - abolition of untouchability' as a wrong pair every second year. Also remember Article 18 exempts military and academic distinctions, and national awards such as the Bharat Ratna were upheld in *Balaji Raghavan v. Union of India* (1996).

Right to Equality - Articles 14 to 18, and the reservation clauses

Article 14 has two limbs and they come from two different traditions. 'Equality before the law' is British and negative - no one is above the law. 'Equal protection of the laws' is American and positive - like should be treated alike. Article 14 covers all persons, not just citizens; Articles 15 and 16 are for citizens only.

- Art. 15 forbids discrimination on five grounds only: religion, race, caste, sex, place of birth. Descent is not one of them.
- Art. 16 guarantees equality of opportunity in public employment.
- Art. 17 abolishes untouchability - enforced through the Protection of Civil Rights Act, 1955 (originally the Untouchability (Offences) Act, 1955).
- Art. 17 is one of the very few rights enforceable against private individuals too.

Which amendment inserted which reservation clause

Clause	Inserted by	Subject
Art. 15(4)	1st Amendment, 1951	Special provision for socially and educationally backward classes, SCs and STs
Art. 15(5)	93rd Amendment, 2005	Reservation in private educational institutions

Clause	Inserted by	Subject
Arts. 15(6) and 16(6)	103rd Amendment, 2019	Reservation for the economically weaker sections (EWS)
Art. 16(4A)	77th Amendment, 1995	Reservation in promotion for SCs and STs
Art. 16(4B)	81st Amendment, 2000	Carrying forward of backlog vacancies

Right to Freedom - Articles 19 to 22

Article 19 today guarantees six freedoms, not seven. The seventh - to acquire, hold and dispose of property - was deleted along with the rest of the property right by the 44th Amendment, 1978. Every one of the six is available only to citizens, and every one carries a 'reasonable restrictions' clause.

- 19(1)(a) speech and expression.
- 19(1)(b) assembly peaceably and without arms.
- 19(1)(c) association or unions - and co-operative societies, which the 97th Amendment, 2011 added here.
- 19(1)(d) movement throughout the territory of India.
- 19(1)(e) residence and settlement in any part of India.
- 19(1)(g) profession, occupation, trade or business.
- Note there is no 19(1)(f) any more - that was property.

Article 20 protects an accused person. Three protections: no ex post facto criminal law, no double jeopardy, no compulsion to be a witness against oneself. Article 20(2) is the double jeopardy clause - the one RPSC names directly.

- Art. 22 rights on arrest: to be told the grounds of arrest, to consult and be defended by a lawyer of choice, and to be produced before the nearest

magistrate within 24 hours excluding journey time.

- These do not apply to enemy aliens or to persons held under preventive detention.
- Preventive detention beyond three months requires the opinion of an advisory board.
- Articles 20 and 21 cannot be suspended even during a National Emergency - the 44th Amendment, 1978 made that permanent after the 1975-77 experience.

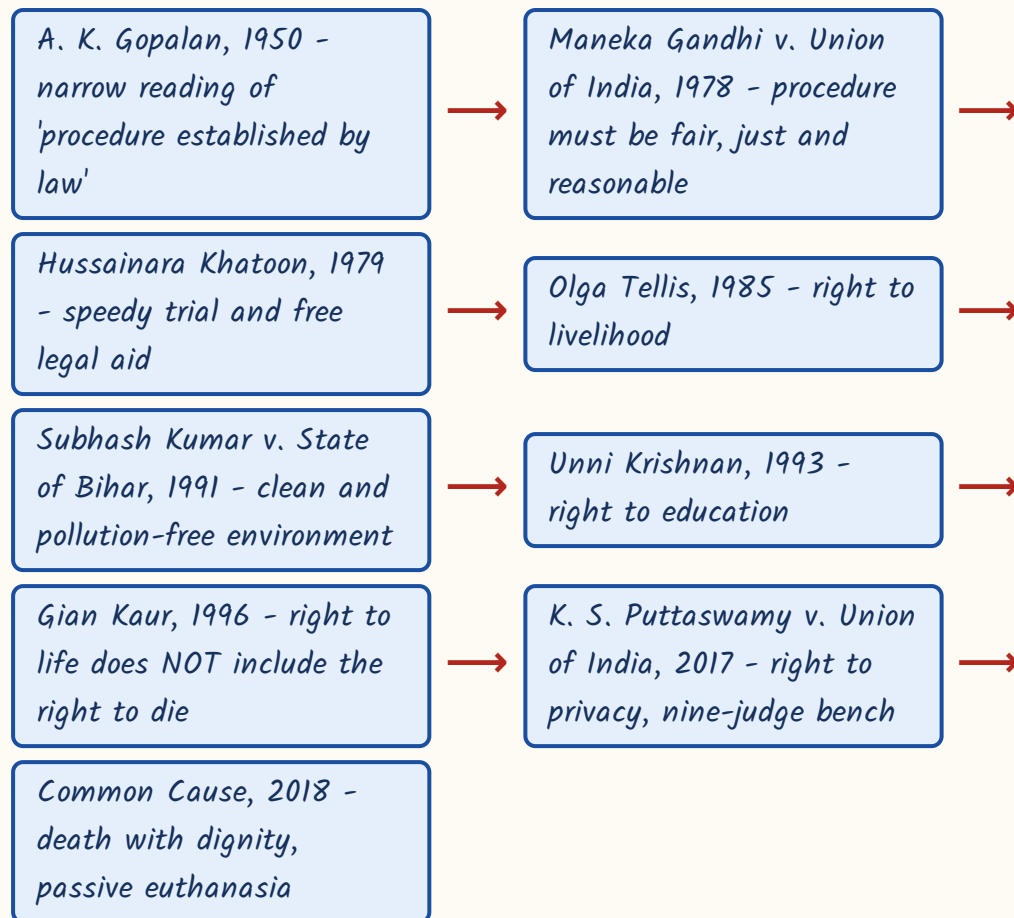
TRAP

Two numbers get swapped constantly. Twenty-four HOURS is the limit for producing an arrested person before a magistrate; three MONTHS is the limit for preventive detention without an advisory board's opinion. And Article 24's child labour age is fourteen years, not eighteen.

Article 21 - the Article that grew, and how it grew

Article 21 reads in one line: no person shall be deprived of his life or personal liberty except according to procedure established by law. In 1950 the Supreme Court read that literally in *A. K. Gopalan* - if Parliament laid down a procedure, that was the end of the matter. In 1978 *Maneka Gandhi* turned it around: the procedure must itself be fair, just and reasonable. Everything after 1978 in Indian rights law flows from that one shift.

The judicial expansion of Article 21 – learn the order, ordering questions are asked



ASKED IN RAS

Asked in RAS Pre 2018 and again in 2023 – in which case did the Supreme Court hold that the 'procedure established by law' under Article 21 must be fair, just and reasonable? *Maneka Gandhi v. Union of India*.

ASKED IN RAS

Asked in RAS Pre 2024 – the right to privacy was declared a Fundamental Right flowing from Article 21 in *K. S. Puttaswamy v. Union of India* (2017). And in RAS Pre 2023 a statement set turned on *Gian Kaur*: the right to life does NOT include the right to die – that statement is false and it was planted as the wrong option.

ASKED IN RAS

Asked in RAS Pre 2023 as a matching set - Vishaka v. State of Rajasthan: guidelines against sexual harassment of women at the workplace; Maneka Gandhi: fair, just and reasonable procedure; Puttaswamy: right to privacy; Olga Tellis: right to livelihood. Note the Rajasthan connection in Vishaka - RPSC likes it for exactly that reason.

- Art. 21A - free and compulsory education for children aged six to fourteen, inserted by the 86th Amendment Act, 2002.
- The Right of Children to Free and Compulsory Education (RTE) Act, 2009 came into force on 1 April 2010.
- Art. 21A binds the State as defined in Art. 12 - so it is not enforceable only against the Union.
- Both Art. 21 and Art. 21A are available to citizens and foreigners alike.

Articles 23 to 30 - exploitation, religion, culture

This block is pure Article-numbering. Read it twice and it stays. The exploitation pair is 23 and 24, the religion block is 25 to 28, and the cultural-educational pair is 29 and 30.

- Art. 23 - prohibition of traffic in human beings, begar and other similar forms of forced labour.
- Art. 24 - no child below fourteen in any factory, mine or other hazardous employment.
- Art. 25 - freedom of conscience and the right freely to profess, practise and propagate religion.
- Art. 26 - freedom of every religious denomination to manage its own religious affairs.

- Art. 27 - no person can be compelled to pay a tax for the promotion of any particular religion.
- Art. 28 - no religious instruction in an educational institution wholly maintained out of State funds.
- Art. 29 - any section of citizens with a distinct language, script or culture may conserve it.
- Art. 30 - minorities, religious or linguistic, may establish and administer educational institutions of their choice.

Article 32 and the five writs

A right without a remedy is a slogan. Article 32 supplies the remedy - you may move the Supreme Court directly for the enforcement of a Fundamental Right, and that itself is a Fundamental Right. Dr. Ambedkar called Article 32 'the very soul of the Constitution and the very heart of it'. Learn that quotation with the Article number attached.

The five writs

Writ	Literal meaning	What it does
Habeas corpus	'To have the body'	Orders that a detained person be produced; used against illegal detention, and it can run against private persons too
Mandamus	'We command'	Commands a public official, body, corporation or lower court to perform a public duty it has failed to perform; not available against a private individual
Prohibition	'To forbid'	Issued by a higher court to a lower court or tribunal to stop it exceeding its jurisdiction - preventive, and only against judicial or quasi-judicial bodies
Certiorari	'To be certified'	A higher court transfers a case to itself or quashes the order of a lower court or tribunal - curative, used after the order is passed

Writ	Literal meaning	What it does
Quo warranto	'By what authority'	Asks a person by what authority he holds a public office; any interested person may seek it

- There are exactly five writs. Injunction is NOT a writ under Article 32 - it is a standard wrong option.
- Art. 32 can be invoked only for the enforcement of Fundamental Rights.
- Art. 226 empowers High Courts to issue the same writs, and is wider - for Fundamental Rights 'and for any other purpose'.
- Art. 32 is itself a Fundamental Right and cannot be suspended except as provided by Article 359.

Who can claim what - citizens only, everyone, and the exceptions

This is the single most repeated distinction in the Fundamental Rights chapter. RPSC asked it as a direct question in 2016 and 2024, and again inside a statement set in 2024. Five Articles are for citizens only. Everything else in Part III is for any person - Indian or foreign, natural or in some cases juristic.

Citizens only vs available to all persons

Only for CITIZENS	For citizens AND foreigners
Art. 15 - no discrimination on religion, race, caste, sex, place of birth	Art. 14 - equality before law, equal protection of the laws
Art. 16 - equality of opportunity in public employment	Art. 20 - protection in respect of conviction for offences
Art. 19 - the six freedoms	Art. 21 - life and personal liberty; Art. 21A - education
Art. 29 - protection of language, script and culture	Art. 22 - protection against arrest and detention
Art. 30 - minorities' right to run educational institutions	Arts. 23 and 24 - against exploitation and child labour
Remember the five numbers: 15, 16, 19, 29, 30	Arts. 25 to 28 - the whole freedom-of-religion block

YAAD RAKHO

Yaad rakho the citizens-only set as '15-16-19-29-30'. Say it out loud as a phone number. Everything not on that list is available to foreigners as well.

ASKED IN RAS

Asked in RAS Pre 2016 and again in 2024 - which Fundamental Right is NOT available to foreigners in India? Freedom of speech and expression under Article 19. In RAS Pre 2024 the same idea came as a statement set: Article 19 is for citizens only (true), Article 21 extends to foreigners (true), Article 15 extends to foreigners (false).

- Art. 33 - Parliament may restrict or abrogate the Fundamental Rights of the armed forces, paramilitary forces, police, intelligence agencies and analogous services.
- Art. 34 - Fundamental Rights may be restricted while martial law is in force in any area.

- Art. 35 - only Parliament, not a State legislature, may make laws on certain Fundamental Rights matters.

The doctrines and the Ninth Schedule

Four doctrines run through Part III, and each has one anchoring case. Learn the doctrine, the one-line meaning and the case name. That is all RPSC asks.

Doctrine, meaning, anchoring case

Doctrine	What it means	Case
Eclipse	A pre-Constitution law inconsistent with a Fundamental Right is not dead - it is overshadowed, and revives if the inconsistency is removed	Bhikaji Narain Dhakras v. State of Madhya Pradesh, 1955
Severability	Only the offending part of a law is struck down; the rest survives if it can stand alone	Applied throughout Art. 13 jurisprudence
Non-waiver	A person cannot waive or give up his Fundamental Rights, even voluntarily	Basheshar Nath v. Commissioner of Income Tax, 1959
Basic structure	Parliament may amend the Constitution but not destroy its basic structure	Kesavananda Bharati, 1973

- Art. 31B protects laws placed in the Ninth Schedule from challenge on Fundamental Rights grounds.
- The Ninth Schedule itself was created by the 1st Amendment Act, 1951.
- I. R. Coelho v. State of Tamil Nadu (2007): laws added to the Ninth Schedule after 24 April 1973 - the date of the Kesavananda judgment - are open to judicial review.

- *Sajjan Singh v. State of Rajasthan* upheld the 17th Amendment and reaffirmed Parliament's power to amend Fundamental Rights; *Golaknath* (1967) reversed that view two years later.

TRAP

Sajjan Singh is 'v. State of Rajasthan' and *Vishaka* is also 'v. State of Rajasthan' - two completely different cases with the same respondent. *Sajjan Singh* is about amending Fundamental Rights; *Vishaka* is about sexual harassment at the workplace. RPSC has a state-specific reason to like both.

REVISION RECAP

1. Citizenship = Part II, Arts. 5-11. Art. 5 at commencement, Art. 6 migrants from Pakistan, Art. 7 migrants to Pakistan, Art. 11 Parliament's power.
2. India has single citizenship only; Art. 9 - voluntary foreign citizenship ends Indian citizenship.
3. Citizenship Act 1955 - five modes in (birth, descent, registration, naturalisation, incorporation of territory), three modes out (renunciation, termination, deprivation). Marriage is not a separate mode.
4. 1992 amendment - descent through the mother; 2003 - defined illegal migrant; 2015 - PIO merged into OCI.
5. CAA 2019 - six communities, three countries, cut-off 31 December 2014, naturalisation cut from eleven years to five.
6. Fundamental Rights = Part III, Arts. 12-35, the Magna Carta of India; originally seven, now six.
7. Art. 12 defines 'State'; Art. 13 makes inconsistent laws void and is the textual basis of judicial review; Art. 13(4) came from the 24th Amendment.
8. Property left Part III by the 44th Amendment, 1978 and now lives in Art. 300A.
9. Equality block: 14 equality, 15 no discrimination, 16 public employment, 17 untouchability, 18 titles.
10. 15(4) - 1st Amendment; 15(5) - 93rd; 15(6) and 16(6) EWS - 103rd; 16(4A) promotion - 77th; 16(4B) backlog - 81st.
11. Art. 19 has six freedoms today; co-operative societies were added to 19(1)(c) by the 97th Amendment, 2011.
12. Art. 20(2) is double jeopardy; Arts. 20 and 21 survive even a National Emergency after the 44th Amendment.

13. Art. 22 - produced before a magistrate within 24 hours; preventive detention beyond three months needs an advisory board.
14. Article 21 line: Gopalan 1950 narrow, Maneka 1978 fair-just-reasonable, Hussainara 1979, Olga Tellis 1985, Subhash Kumar 1991, Unni Krishnan 1993, Gian Kaur 1996 (no right to die), Puttaswamy 2017, Common Cause 2018.
15. Art. 21A - education 6-14, inserted by the 86th Amendment 2002; RTE Act 2009 effective 1 April 2010.
16. 23 forced labour, 24 child labour below 14; 25-28 religion (27 tax, 28 instruction); 29 culture, 30 minority institutions.
17. Art. 32 is 'the very soul of the Constitution' - Ambedkar; five writs only, injunction is not one of them.
18. Art. 226 is wider than Art. 32 - High Courts can issue writs for Fundamental Rights and for any other purpose.
19. Citizens-only rights: Arts. 15, 16, 19, 29, 30. Every other Fundamental Right covers foreigners too.
20. Doctrines: eclipse (Bhikaji Narain 1955), severability, non-waiver (Bhaskar Nath 1959), basic structure (Kesavananda 1973); Ninth Schedule laws post 24 April 1973 are reviewable after I. R. Coelho (2007).